

Notice from the National Commission for Data Protection regarding Bill No. 8186A amending the amended General Tax Law of May 22, 1931 ("Abgabenordnung"); the amended law of November 27, 1933 concerning the collection of direct contributions, excise duties on spirits, and social security contributions; the amended law of December 19, 2008 aimed at inter-administrative and judicial cooperation and strengthening the means of the Administration of Direct Contributions, the Administration of Registration and Domains, the Administration of Customs and Excise, and amending the amended law of February 12, 1979 concerning value-added tax; the General Tax Law ("Abgabenordnung"); the amended law of April 17, 1964 reorganizing the Administration of Direct Contributions; the amended law of March 20, 1970 reorganizing the Administration of Registration and Domains; the amended law of November 27, 1933 concerning the collection of direct contributions and social security contributions.

Deliberation No. 53/AV21/2024 of August 7, 2024

In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter referred to as the "GDPR"), to which Article 7 of the law of August 1, 2018 organizing the National Commission for Data Protection and the general regime on data protection refers, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or the "CNPD") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to processing."

Furthermore, Article 36.4 of the GDPR states that "[m]ember states consult the supervisory authority in the context of the preparation of a legislative proposal to be adopted by a national parliament, or a regulatory measure based on such legislative proposal, which relates to processing."

CNPD

Notice from the National Commission for Data Protection regarding Bill No. 8186A amending the amended General Tax Law of May 22, 1931 ("Abgabenordnung") and certain related laws.

1/12

3. By letter dated March 28, 2023, the Minister of Finance invited the national Commission to express its opinion on the draft law amending the modified general tax law of May 22, 1931 ("Abgabenordnung"); the modified law of November 27, 1933 concerning the collection of direct contributions, excise duties on spirits, and social security contributions; the modified law of November 7, 1996 concerning the organization of administrative courts; the modified law of December 19, 2008 aimed at inter-administrative and judicial cooperation and strengthening the means of the Administration of Direct Contributions, the Administration of Registration and Domains, the Customs and Excise Administration, and amending the modified law of February 12, 1979 concerning value-added tax; the general tax law ("Abgabenordnung"); the modified law of April 17, 1964 concerning the reorganization of the Administration of Direct Contributions; the modified law of March 20, 1970 concerning the reorganization of the Administration of Registration and Domains; the modified law of November 27, 1933 concerning the collection of direct contributions and social security contributions.

4. It appears from the explanatory memorandum that the draft law aims, in particular, to amend the general tax law (hereinafter "AO") and certain related laws with a view to simplifying and modernizing the procedures applicable to taxpayers. The draft law also seeks to expand the transfer of information within the framework of inter-administrative cooperation in order to enable the Administration of Direct Contributions (hereinafter "ACD") to exchange necessary information for the exercise of their respective missions both with the Financial Sector Supervisory Commission (hereinafter "CSSF") and with the Insurance Commissioner (hereinafter "CAA").

5. The Finance Commission, during its meeting on July 17, 2024, decided to split the aforementioned draft law into two distinct draft laws:

Draft law 8186A amending 1° the modified general tax law of May 22, 1931 ("Abgabenordnung"); 2° the modified law of November 27, 1933 concerning the collection of direct contributions, excise duties on spirits, and social security contributions; 3° the modified law of December 19, 2008 aimed at inter-administrative and judicial cooperation and strengthening the means of the Administration of Direct Contributions, the Administration of Registration and Domains, the Customs and Excise Administration, and amending the modified law of February 12, 1979 concerning value-added tax; the general tax law ("Abgabenordnung"); the modified law of April 17, 1964 concerning the reorganization of the Administration of Direct Contributions; the modified law of March 20, 1970 concerning the reorganization of the Administration of Registration and Domains; the modified law of November 27, 1933 concerning the collection of direct contributions and social security contributions (hereinafter the "draft law"); and

Draft law 8186B amending 1° the modified general tax law of May 22, 1931 ("Abgabenordnung"); 2° the modified law of November 7, 1996 concerning the organization of administrative courts.

CNPD

Opinion of the National Commission for Data Protection

regarding draft law No. 8186A amending the modified general tax law of May 22, 1931 ("Abgabenordnung") and certain related laws.

2/12

6. In parallel, the National Commission has been presented with four draft Grand-Ducal regulations developed in the context of the provisions modified or introduced by the bill. After analyzing the draft Grand-Ducal regulations submitted to it, the CNPD could not identify any issues concerning the protection of the rights and freedoms of individuals regarding the processing of personal data. It therefore does not consider it necessary to express an opinion on the aforementioned draft Grand-Ducal regulations. Consequently, this opinion will limit its observations to the issues addressing the aspects of the bill concerning data protection within the framework of the bill.

1. Regarding Article 1 of the bill

7. Article 1 of the bill aims to introduce a new Article §22bis "in order to allow the ACD to delegate certain IT functions for the information that must be disclosed to the provider of these services." These provisions provide for a specific exemption from the obligation to maintain tax secrecy.

8. Furthermore, according to the commentary on the articles, the purpose of this new provision is to extend the violation of the provisions of §22 AO to individuals external to the ACD in the context of executing specific tasks or their subcontracting. Thus, the bill provides that the ACD is authorized to entrust the execution of specific tasks to contractors and subcontractors. The provisions of tax secrecy apply in this case to the providers of these services.

9. It should also be noted that paragraph 3 of the new Article §22bis states that "when, for the purposes of executing the tasks referred to in paragraphs 1 or 2, access to information covered by tax secrecy, as defined in §22, is deemed necessary, access to this information may only be granted with the prior authorization of the Director of the Administration of Direct Contributions or his delegate." Furthermore, paragraph 4 of the aforementioned article states that "any disclosure of information covered by tax secrecy, of which a person has become aware under the terms set out in paragraph 3, that is made outside the execution of the tasks referred to in paragraphs 1 or 2, shall be sanctioned in accordance with §412."

1 Draft Grand-Ducal regulation implementing paragraph 4 of section 171 of the amended General Tax Law of May 22, 1931 ("Abgabenordnung"); Draft Grand-Ducal regulation implementing Article 12a of the amended law of November 27, 1933 concerning the collection of direct contributions, excise duties on spirits, and social security contributions; Draft Grand-Ducal regulation implementing paragraph 2 of section 22bis of the amended General Tax Law of May 22, 1931 ("Abgabenordnung"); Draft

Grand-Ducal regulation implementing section 29c of the amended General Tax Law of May 22, 1931 ("Abgabenordnung").

2 Opinion No. 61.390 of the State Council dated July 11, 2023, doc. pari. No. 8186/04, p. 3.

CNPD

Opinion of the National Commission for Data Protection

regarding Bill No. 8186A amending the amended General Tax Law of May 22, 1931

("Abgabenordnung") and certain related laws.

3/12

10. There is reason to congratulate the authors of the bill for including such provisions, as the information covered by tax secrecy may include personal data.

11. Furthermore, according to the understanding of the National Commission, the CTIE would act as a subcontractor of the ACD. It should be recalled that Article 4.8 of the GDPR defines the subcontractor as "the natural or legal person, public authority, service, or other body that processes personal data on behalf of the data controller." It is important to emphasize that the processing of personal data carried out by the CTIE on behalf of the ACD must be governed by a contract or another legal act in accordance with Article 28 of the GDPR. Finally, Article 32 of the GDPR states that "the data controller and the processor implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk." Such measures must be implemented to avoid, in particular, unauthorized access to data, data breaches, or unwanted modifications.

Regarding Article 3 of the bill

A. Preliminary Remarks

12. Article 3 of the bill under review amends the modified law of December 19, 2008, concerning inter-administrative and judicial cooperation and the strengthening of the means of the Administration of Direct Contributions, the Administration of Registration and Domains, and the Administration of Customs and Excise (hereinafter referred to as the "modified law of December 19, 2008"), by inserting two new chapters to allow for reciprocal exchanges of information between the ACD and the CSSF, or the ACD and the CAA.

13. First of all, it should be recalled that the GDPR will only apply if the exchange, as provided for in the bill, involves the processing of personal data. Article 3 of the GDPR defines personal data as "any information relating to an identified or identifiable natural person (hereinafter referred to as 'data subject'); an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more specific elements characteristic of their physical, physiological, genetic, mental, economic, cultural, or social identity."

3 See in this regard: European Data Protection Board (EDPB), Guidelines 07/2020 on the concepts of controller and processor in the GDPR, p. 3, available at:

https://edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-072020-concepts-controller-and-processor-adpr_fr

4 New Chapter IVbis.

5 New Chapter IVter.

CNPD

Opinion of the National Commission for Data Protection

on Bill No. 8186A amending the modified general tax law of May 22, 1931 ("Abgabenordnung") and certain related laws.

4/12

14. Furthermore, Recital 14 of the GDPR states that "[t]his regulation does not cover the processing of personal data concerning legal persons, and in particular companies with legal personality, including the name, legal form, and contact details of the legal person." However, information relating to legal persons may, in certain cases, concern natural persons and thus be considered personal data. Indeed, the Article 29 Working Party in its Opinion 4/2007 on the concept of personal data dated June 20, 2007, WP 136, indicates that "information relating to legal persons may also be considered as 'concerning' natural persons as such (...). This may be the case when the name of the legal person is derived from that of a natural person. Another scenario is that of a company email address that is

normally used by an employee, or information concerning a small business (from a legal perspective, an 'object' rather than a legal person) that may eventually describe the behavior of its owner."

15. Furthermore, the European Commission also specifies in its "[G]uidelines on the regulation concerning a framework applicable to the free flow of non-personal data in the European Union," under which circumstances data relating to legal persons may constitute personal data.

B. On the further processing of personal data for a different purpose

16. In accordance with Article 5.1.b) of the GDPR, personal data must be collected for specified, explicit, and legitimate purposes, and may not be further processed in a manner incompatible with those purposes.

17. However, Recital 50 of the GDPR states that "[t]he processing of personal data for purposes other than those for which the personal data have been initially collected should only be allowed if it is compatible with the purposes for which the personal data were initially collected. In this case, no legal basis distinct from that which allowed the collection of the personal data is required. If the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller, Union law or the law of a Member State may determine and specify the tasks and the..."

6 The Article 29 Working Party was an advisory body that advised the Commission on data protection issues and contributed to the development of harmonized data protection policies in the EU. Following the entry into application of the GDPR on May 25, 2018, the European Data Protection Board succeeded this working party.

7 Communication from the Commission to the European Parliament and the Council dated May 29, 2019, "Guidelines on the regulation concerning a framework applicable to the free flow of non-personal data in the European Union," COM (2019) 250 final.

CNPD

Opinion of the National Commission for Data Protection

regarding Bill No. 8186A amending the amended General Tax Law of May 22, 1931

("Abgabenordnung") and certain related laws.

5/12

purposes for which further processing should be considered compatible and lawful.

(...) The legal basis provided by Union law or the law of a Member State regarding the processing of personal data may also constitute the legal basis for further processing. In order to establish whether the purposes of further processing are compatible with those for which the personal data were initially collected, the data controller, after having complied with all the requirements related to the lawfulness of the initial processing, should take into account, among other things: any link between these purposes and the purposes of the intended further processing; the context in which the personal data were collected, in particular the reasonable expectations of the data subjects, based on their relationship with the data controller, regarding the further use of such data; the nature of the personal data; the consequences for the data subjects of the intended further processing; and the existence of appropriate safeguards both in the context of the initial processing and the intended further processing.

18. Article 6.4 of the GDPR specifies the conditions to be met in the context of processing for a purpose other than that for which the data were collected and states that "where the processing for a purpose other than that for which the data were collected is not based on the consent of the data subject or on Union law or the law of a Member State which constitutes a necessary and proportionate measure in a democratic society to safeguard the objectives set out in Article 23(1), the data controller, in order to determine whether the processing for another purpose is compatible with the purpose for which the personal data were initially collected, takes into account, among other things:

a. the possible existence of a link between the purposes for which the personal data were collected and the purposes of the intended further processing;

b. the context in which the personal data were collected, in particular regarding the relationship between the data subjects and the data controller;

- c. the nature of the personal data, in particular whether the processing concerns special categories of personal data, under Article 9, or whether personal data relating to criminal convictions and offenses are processed, under Article 10;
- d. the possible consequences of the intended further processing for the data subjects;
- e. the existence of appropriate safeguards, which may include encryption or pseudonymization."

19. It should be noted that in its opinion on draft bill No. 7872, the Council of State noted that "the condition of lawfulness of processing provided for in Article 6(1)(e) of the GDPR concerns only the collection and initial processing of personal data by public authorities. However, insofar as, within the framework of the project under review, personal data will be transferred to a public authority other than the initial data controller for a purpose different from that for which the data were collected, that authority will need to verify the alternative conditions of Article 6(4) of the GDPR that allow for the processing."

CNPD

Opinion of the National Commission for Data Protection

on draft bill No. 8186A amending the amended General Tax Law of May 22, 1931 ("Abgabenordnung") and certain related laws.

6/12

subsequent processing of data. The transfer of data between public authorities may be legitimate if the subsequent processing is based on a legal provision that constitutes a necessary and proportionate measure in a democratic society to ensure one of the objectives referred to in Article 23, paragraph 1, of the GDPR. The draft under review aims to create this necessary legal basis for the subsequent processing of data for a purpose different from that for which the data was collected, and the Council of State will verify in the context of the examination of the articles whether the provisions under review pursue a purpose listed in Article 23, paragraph 1, of the GDPR and whether the proposed processing is proportionate to that purpose.

20. Furthermore, the Council of State emphasized in its opinion regarding the text under review that the correct establishment of tax constitutes a legitimate public interest, as does the proper functioning of prudential supervision as well as the fight against money laundering and the fight against the financing of terrorism. The National Commission aligns itself with the opinion of the Council of State and considers that this purpose "constitutes a necessary and proportionate measure in a democratic society to guarantee the objectives referred to in Article 23 [of the GDPR]."

21. Indeed, Article 23.1.e) of the GDPR states that "[t]he law of the Union or the law of the Member State to which the controller or the processor is subject may, by means of legislative measures, limit the scope of the obligations and rights provided for in Articles 12 to 22 and in Article 34, as well as in Article 5 to the extent that the provisions of the law in question correspond to the rights and obligations provided for in Articles 12 to 22, when such limitation respects the essence of fundamental freedoms and rights and constitutes a necessary and proportionate measure in a democratic society to guarantee: (...) other important objectives of general public interest of the Union or of a Member State, in particular an important economic or financial interest of the Union or of a Member State, including in the fields of monetary, budgetary and fiscal policy, public health, and social security."

22. Moreover, it should also be noted that the Court of Justice of the European Union has recognized that "contributing to the fight against international tax fraud and evasion [...] constitutes an objective of general interest recognized by the Union." Therefore, it is appropriate to commend the authors of the draft law for establishing a legal basis for the subsequent processing of personal data for a purpose different from that for which the data was initially collected.

23. Finally, it should be emphasized that when a restriction on the rights of individuals is provided for by a legislative measure, it must include specific provisions concerning the information listed in Article 23.2 of the GDPR. Thus, the draft law should contain precise provisions relating to the purposes or categories of processing, the categories of personal data, the extent of the limitations introduced, the safeguards aimed at preventing abuse or unlawful access and transfers, the determination of the data controller, the retention periods, and the risks to the rights and freedoms of individuals.

National Commission for Data Protection

Opinion of the National Commission for Data Protection

regarding draft law No. 8186A amending the modified general tax law of May 22, 1931

("Abgabenordnung") and certain related laws.

7/12

concerned and the right of these individuals to be informed of the limitation. The CNPD nevertheless notes that the draft law fails to take into account the mandatory provisions set out in paragraph 2 of Article 23 of the GDPR, which specifies the elements that any legislative measure based on Article 23.1 must include.

C. Regarding data exchange between the ACD and the CSSF

24. Article 3 of the draft law introduces a new Article 16bis into the amended law of December 19, 2008, whose new provisions provide for data exchange between the ACD and the CSSF "upon respective motivated requests" concerning "information, acts, and documents in their possession relating to taxpayers who are entities subject to the prudential supervision of the Commission de surveillance du secteur financier or for which the Commission de surveillance du secteur financier is the competent authority to ensure compliance with professional obligations regarding the fight against money laundering and the financing of terrorism."

25. Paragraph 2 of the said Article 16bis provides that "the information, acts, and documents transmitted by the Commission de surveillance du secteur financier to the Administration des contributions directes under paragraph 1 must be necessary for the execution of legislation concerning various direct taxes or for the exercise of the powers and collections entrusted to the Administration des contributions directes by special legal provisions."

26. Article 16bis.3 further provides that "the information, acts, and documents transmitted by the Administration des contributions directes to the Commission de surveillance du secteur financier under paragraph 1 must be necessary for the exercise of the prudential supervision carried out by the Commission de surveillance du secteur financier or to ensure compliance by the entities referred to in paragraph 1 with their professional obligations regarding the fight against money laundering and the financing of terrorism."

27. The National Commission notes that the first paragraph of Article 16bis specifies the modalities of data exchange as well as the individuals concerned by this processing. It particularly welcomes the fact that this data exchange occurs solely upon motivated request, which excludes automatic data exchange. The second and third paragraphs state the respective purposes of the data transmission. In this regard, the authors of the draft law specify in the commentary on Article 3 (new Article 16bis) that "[c]ooperation between the ACD and the CSSF is necessary to prevent a taxpayer who is also an establishment monitored by the CSSF as a prudential authority or for which the CSSF controls compliance with professional obligations regarding AML/CFT from making inconsistent or contradictory statements to the CSSF or respectively to the ACD." The National Commission thus understands that the purpose pursued by the transfer of data between the ACD and the CSSF would be to ensure that...

12_New Article 16bis.1 introduced by Article 3 of the draft law.

CNPD

Opinion of the National Commission for Data Protection

regarding draft law no. 8186A amending the amended general tax law of May 22, 1931

("Abgabenordnung") and certain related laws.

8/12

Taxpayers, who are also entities subject to the supervision of the CSSF, issue consistent statements to the tax administration or to the CSSF.

28. Article 3 of the draft law also introduces a new Article 16ter which provides for new data communications between the ACD and the CSSF. The first paragraph of Article 16ter lists the purpose of the transmission, namely "to verify that Luxembourg reporting financial institutions do not adopt practices aimed at circumventing the communication of information provided for by the amended law of

December 18, 2015, relating to the Common Reporting Standard (CRS) and the amended law of July 24, 2015, relating to FATCA." Furthermore, it is stated in the commentary on the article that "the information, acts, and documents exchanged [...] solely relate to possible practices aimed at circumventing the communication of information provided for by the amended law of December 18, 2015, relating to the Common Reporting Standard (CRS) and the amended law of July 24, 2015, relating to FATCA. The establishment of this information exchange does not aim to verify the tax compliance of the clients of the concerned financial institutions." The CNPD welcomes that the authors of the draft law have specified the purposes for which the data would be transmitted.

29. Nevertheless, the National Commission notes that within the framework of Article 16ter, the exchange of data does not occur upon a motivated request as provided for by Article 16bis.1 and questions the reasons why the authors of the draft law decided to omit this specification. It strongly suggests adding this provision in Article 16ter, given that the text under review intends to derogate from the provisions of the amended law of December 18, 2015, relating to the Common Reporting Standard (CRS) and the amended law of July 24, 2015, relating to FATCA, which stipulate that the data must be used solely for the purposes provided for in these laws.

30. Finally, although the processing envisaged by the provisions under review is based on a legal provision that constitutes a necessary and proportionate measure in a democratic society, the principle of data minimization enshrined in Article 5.1.e) of the GDPR, according to which personal data must be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed, must also be respected.

D. Regarding the exchange of data between the ACD and the CAA

31. The exchange of data between the ACD and the CAA is introduced by Article 17bis in the amended law of December 19, 2008, which provides in its first paragraph that "upon respective motivated requests, the Administration of Direct Contributions and the Insurance Commissioner exchange the information, acts, and documents in their possession concerning taxpayers who are entities subject to the prudential supervision of the Insurance Commissioner or for which the Insurance Commissioner is the competent authority for."

CNPDi

Opinion of the National Commission for Data Protection

regarding draft law No. 8186A amending the amended General Tax Law of May 22, 1931 ("Abgabenordnung") and certain related laws.

9/12

ensure compliance with professional obligations regarding the fight against money laundering and the financing of terrorism".

32. Paragraph 2 of the aforementioned Article 17bis provides that "the information, acts, and documents transmitted by the Insurance Commissioner to the Administration of Direct Taxes under paragraph 1 must be necessary for the execution of the legislation concerning various direct taxes or for the exercise of the powers and collections entrusted to the Administration of Direct Taxes by special legal provisions".

33. Article 17bis.3 further states that "the information, acts, and documents transmitted by the Administration of Direct Taxes to the Insurance Commissioner under paragraph 1 must be necessary for the exercise of the prudential supervision carried out by the Insurance Commissioner or to ensure compliance by the entities referred to in paragraph 1 with their professional obligations regarding the fight against money laundering and the financing of terrorism".

34. The draft law also introduces Article 17ter, which provides for the transmission of information collected by the CAA "in the context of its legal missions and likely to be useful for verifying that Luxembourg reporting financial institutions do not adopt practices aimed at circumventing the communication of information provided for by the amended law of December 18, 2015, relating to the Common Reporting Standard (CRS) and the amended law of July 24, 2015, relating to FATCA" to the

ACD.

35. The CNPD notes that the provisions concerning cooperation between the ACD and the CAA are focused on the provisions of Articles 16bis and 16ter relating to cooperation between the ACD and the CSSF and reiterates its previous observations. It welcomes that the authors of the draft law define the purposes for which the information, acts, and documents may be transmitted and reminds that only personal data that are necessary for the achievement of the purposes pursued by the data controller should be transmitted (data minimization principle).

E. Regarding exceptions to tax secrecy and professional secrecy

36. It should be recalled that violations of professional secrecy are punishable by the criminal sanctions provided for in Article 458 of the Penal Code. It follows that exceptions to secrecy must be provided for by law and are to be interpreted strictly. The framework governing the exchange of information must therefore be established by law to ensure an adequate level of legal security.

37. In this case, the data exchanges provided for by Article 3 of the draft law are considered an exception to professional secrecy and to tax secrecy.

14 See points 23 and following of this opinion.

15 See Article 3 of the draft law which introduces Article 16ter.3 and Article 17ter.3 into the amended law of December 19, 2008.

CNPD

Opinion of the National Commission for Data Protection

regarding draft law No. 8186A amending the amended General Tax Law of May 22, 1931 ("Abgabenordnung") and certain related laws.

10/12

38. In the commentary on the articles, the authors of the bill under review emphasize that "the information received by the ACD is all subject to the tax secrecy provided for in paragraph 22 of the AO and the information received by the CSSF is subject to the professional secrecy referred to in Article 16 of the amended law of December 23, 1998, establishing a commission for the supervision of the financial sector."

39. Thus, the information transmitted to the CSSF or the CAA under this bill will benefit from a protection at least equivalent to that imposed on the ACD, in accordance with Article 16 of the amended law of December 23, 1998, establishing a commission for the supervision of the financial sector and Article 7 of the law of December 7, 2015, on the insurance sector.

40. The CNPD therefore welcomes that the authors of the bill have provided for an exception to tax secrecy and professional secrecy in the text of the law.

F. On Information Security

41. In accordance with Article 5.1.f) of the GDPR, personal data must be "processed in a manner that ensures appropriate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures (integrity and confidentiality)." Article 32 of the GDPR further states that "the data controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk."

42. Thus, in the context of implementing data exchanges between different public authorities electronically, or through automated or non-automated processes, such security measures should be implemented by the various data controllers to ensure the confidentiality and security of the data. In this context, it is strongly recommended to define an access management policy, in order to be able to identify from the outset the person or service within each relevant administration and to which specific data this person or service would have access.

43. Furthermore, it is necessary to provide for an access logging system. In this regard, the CNPD

recommends that logging data be retained for a period of five years from their recording, after which they are deleted, unless they are subject to a control procedure.

44. Finally, the National Commission emphasizes the importance of proactively conducting internal controls. To this end, it is necessary, in accordance with Article 32.1.d) of the GDPR, to implement a procedure "aimed at testing, analyzing, and regularly evaluating the effectiveness of technical and organizational measures to ensure the security of processing."

Thus adopted in Belvaux on August 7, 2024.

The National Commission for Data Protection
Thierry Lallemand
Commissioner

Marc Lemmer
Commissioner

Alain Herrmann
Commissioner

CNPD

Opinion of the National Commission for Data Protection

Regarding Bill No. 8186A amending the amended General Tax Law of May 22, 1931

("Abgabenordnung") and certain related laws.

12/12